

U.S. DEPARTMENT OF AGRICULTURE
WASHINGTON, D.C. 20250

DEPARTMENTAL REGULATION	NUMBER: DR 5100-004
SUBJECT: Real Property Management	DATE: February 9, 2023
OPI: Office of Property and Environmental Management	EXPIRATION DATE: February 9, 2028

<u>Section</u>	<u>Page</u>
1. Purpose	1
2. Special Instructions/Cancellations	1
3. Scope	2
4. Policy	2
5. Roles and Responsibilities	10
6. Policy Exceptions	12
7. Inquiries	12
Appendix A – Acronyms and Abbreviations	A-1
Appendix B – Definitions	B-1
Appendix C – Authorities and References	C-1

1. PURPOSE

This Departmental Regulation (DR) establishes the United States Department of Agriculture's (USDA) policy for the management, acquisition, and disposal of real property assets.

2. SPECIAL INSTRUCTIONS/CANCELLATIONS

- a. This regulation supersedes DR 5100-004, *Real Property Management*, dated April 1, 2021.
- b. This regulation is effective immediately when published.
- c. All Mission Areas, agencies, and staff offices will align their policies and procedures with this DR within 6 months of the publish date.

3. SCOPE

- a. This DR applies to all USDA Mission Areas, agencies, and staff offices.
- b. The [Federal Management Regulation \(FMR\) 102-71.20](#), *What definitions apply to GSA's real property policies*, defines the term "real property." As such, certain types of lands (e.g., public domain lands, lands reserved or dedicated for national forest purposes, easements) are excluded from the scope of this DR.

4. POLICY

a. Management

- (1) The Assistant Secretary for Administration (ASA) serves as the USDA's Senior Real Property Officer (SRPO). The Office of Property and Environmental Management (OPEM) oversees all of USDA's real property management. The OPEM Property Management Division (PMD) Chief serves as the USDA Real Property Director (RPD). The lowest level official in the Mission Area, agency, or staff office with full responsibility over the Mission Area, agency, or staff office's real property portfolio serves as the Agency Real Property Director (ARPD).
- (2) Capital Plan (CP)
 - (a) Annually, the SRPO will coordinate with the USDA Chief Financial Officer (CFO) and Budget Officer (BO) to implement USDA's CP process as required by Office of Management and Budget (OMB) Memorandum [M-20-03](#), *Implementation of Agency-wide Real Property Capital Planning*. This process covers all real property assets including leased buildings and facilities, Occupancy Agreements (OA), agreements, free space, owned buildings, structures, land, and land leases.
 - (b) ARPDs will also take the lead within each USDA Mission Area, agency, or staff office to coordinate with the Mission Area, agency, or staff office's CFO and BO to submit the Agency CP information to USDA.
- (3) Real Property Asset Data
 - (a) [Executive Order 13327](#), *Federal Real Property Asset Management*, mandated use of a centralized real property database known as the [Federal Real Property Profile Management System](#) (FRPP-MS). The Federal Real Property Council (FRPC) updates the real property reporting requirements for Federal agencies annually in the Federal Real Property Profile (FRPP) Data Dictionary (DD). The latest DD along with other guidance can be found in the [FRPC Guidance Library](#).

- (b) Mission Areas, agencies, and staff offices track, manage, measure and report real property holdings in the Department's Enterprise Asset Management System (EAMS). EAMS data feeds into FRPP-MS. The data will reflect accurate and complete information on all USDA real property assets including owned facilities and structures, land leases, office leases, OAs, agreements, free space, etc. Data will be updated in the system within 5 working days of signing a contract or agreement for acquisition, alteration, modification, or disposal of a real property asset.
- (c) For collocated leases, the lead leasing agency (LLA) will enter collocation agreement data in the EAMS. For collocated property in USDA owned buildings, the owning agency will enter collocation agreement data in EAMS.
- (d) Within the National Capitol Region (NCR), the USDA Office of Operations (OO) maintains the data in the EAMS, except for locations whereby there is mutual agreement between OO and the Mission Area, agency, or staff office for the Mission Area, agency, or staff office to maintain the data.
- (e) Mission Areas, agencies, and staff offices utilize the EAMS rent reconciliation tool once per month to compare the rent and security charges that the General Services Administration (GSA) and Department of Homeland Security (DHS) have billed USDA with their OAs to ensure that GSA and DHS are billing USDA correctly.
 - 1 If data discrepancies are found, they will be resolved and corrected in the EAMS within 5 working days.
 - 2 If the information GSA has provided is incorrect, Mission Areas, agencies, and staff offices will contact GSA for resolution.
 - 3 If the Mission Area, agency, or staff office cannot resolve the issue with GSA or DHS directly within 20 working days, the Mission Area, agency, or staff office will submit a formal request for assistance to OPEM.RealProperty@usda.gov along with documentation of the issue.
- (f) ARPDs will submit an annual certification to OPEM no later than September 30 that affirms the integrity of their Mission Area, agency, or staff office's reportable real property inventory data in the Department's EAMS for that fiscal year. Certification means all data gaps, errors, inconsistencies, and anomalies have been corrected.
- (g) Once a year, after each Mission Area, agency, or staff office has certified its data and the Chief, PMD has certified the data for the Department, USDA's data will be submitted to GSA through FRPP-MS.

(4) Annual Real Property Inventories

(a) Designated Point of Contact.

- 1 The designated point of contact for USDA for annual real property inventories is the Chief, PMD.
- 2 Each USDA Mission Area, agency, or staff office will:
 - a Designate primary and alternate points of contact for their annual real property inventories.
 - b Submit original and updated points of contact to OPEM.RealProperty@usda.gov.

(b) The Chief, PMD, will certify USDA's annual real property inventory. The head of each Mission Area, agency, or staff office will also certify that the information in their real property inventory submission is accurate.

(c) USDA uses its EAMS to submit real property inventory reports to GSA. No alternate or supplemental data management systems may be used within USDA Mission Areas, agencies, and staff offices without the approval from the Director of OPEM.

(d) All USDA owned and leased real property assets will be physically inspected and inventoried once every 5 years. The Department's EAMS will be updated to certify that the inventories have been completed.

(5) Mission Areas, agencies, and staff offices will ensure that all real property actions involving owned or leased land follow the sustainability and environmental management policy located in [DR 1058-001](#), *Sustainable Operations Council*, and [DR 5600-005](#), *Environmental Management*.

(6) Approval of Proposed Acquisition Projects

(a) Acquisition includes the purchase, lease, transfer, exchange, donation, or gift of real property.

(b) Unimproved Land. All projects regardless of dollar amount will be approved by the Director of OPEM when USDA is acquiring unimproved land.

(c) Improved Land, Buildings, and Other Structures.

- 1 All projects for acquiring improved land, buildings, or other structures which involve a total expenditure more than \$1,500,000 will be approved by the Director of OPEM and the ASA when USDA is:

- a Acquiring land, buildings, or structures;
 - b Constructing new buildings, or structures;
 - c Altering existing buildings, or structures; and
 - d Leasing a facility that exceeds an average annual rental of \$1.5 million.
 - 2 Requests for review and approval for proposed acquisition projects that require review and approval from the OPEM Director and the ASA will be submitted to OPEM.RealProperty@usda.gov. Review requests will allow 45 calendar days for OPEM and ASA approval.
 - 3 All projects for acquiring improved land, buildings, or other structures which involve a total expenditure less than or equal to \$1,500,000 will be approved utilizing Mission Area, agency, or staff office procedures.
- (d) Alterations under Lease.
- 1 Projects Exceeding \$750,000. All projects involving the alteration of a leased building or any part of a leased building which involve a total expenditure more than \$750,000 will be approved by the ASA. Mission Areas, agencies, and staff offices will submit the proposed project to OPEM.RealProperty@usda.gov to obtain ASA approval. Review requests will allow 45 calendar days for OPEM and ASA approval.
 - 2 Projects at \$750,000 or Under. All projects involving the alteration of a leased building or any part of a leased building which involve a total expenditure of \$750,000 or less will be approved utilizing Mission Area, agency, or staff office procedures.
- (e) If approved, OPEM will coordinate the submission of any project for which Congressional approval is required under [40 United States Code \(U.S.C.\) § 3307](#), *Congressional approval of proposed projects*.
- (f) If an acquisition is specifically authorized by Congress through appropriations or other laws, Mission Areas, agencies, and staff offices will submit the project to OPEM for review.
- (g) Prior approval of the ASA is required before a USDA Mission Area, agency, or staff office may take any action or public announcement of the design, alteration, or construction of a USDA-owned facility, not specifically authorized by law, appropriations act, or reports accompanying an

appropriation act, when the estimated cost exceeds \$1,500,000. Prior approval from the ASA is not required for appraisals.

- (h) Prospectus Threshold. For any acquisition or alteration project that exceeds the GSA [Annual prospectus thresholds](#) website, Mission Areas, agencies, and staff offices will submit prospectus information required by GSA to OPEM. OPEM will seek ASA approval. If approved, OPEM will coordinate the submission of the request to the GSA Administrator who will transmit it to Congress.
- (7) Congressional Notifications. When Mission Areas, agencies, and staff offices are required to notify Congress for any real property action, they will also notify OPEM at the same time by submitting the notification to OPEM.RealProperty@usda.gov.

b. Acquisition

- (1) When acquiring real property, USDA must have legal authority. All acquisition deeds should reference the applicable legal authority. Under [7 U.S.C. § 2268a](#), *Acquisition of land; options*, Mission area, agency, and staff office heads are delegated authority to acquire real property.
- (2) Acquisition of subsurface rights. The subsurface rights will be acquired or subordinated to the rights of the United States for those parcels on which the land to be acquired will be improved. In such acquisitions, the following clause will be included in all purchase contracts:

“The vendor further agrees not to do, or suffer others to do, any act by which the value or title to said lands may be diminished or encumbered. It is further agreed that any loss or damage to the property occurring prior to the vesting of satisfactory title in the United States of America by reason of the unauthorized cutting or removal of products or the removal of minerals or other natural resources therefrom, or because of fire, or act of God, will be borne by the vendor; and that, in the event any such loss or damage occurs, the United States may refuse, without liability, to accept conveyance of said land, or it may elect to accept conveyance upon an equitable adjustment of the purchase price.”

- (3) Appraisals. When conducting appraisals of real property, USDA will follow the [Uniform Appraisal Standards for Federal Land Acquisitions](#), as adopted, published, and amended by the Department of Justice (DOJ).
- (4) Transfers
 - (a) Mission Area, agency, and staff office heads will request an exception to the 100 percent reimbursement requirement by submitting a request to the OPEM Director.

- (b) Transfers of real property between USDA agencies will be executed on an [Agriculture Department \(AD\) 107](#) form, *Report of Transfer or Other Disposition or Construction of Property*. Transfers of real property with other Federal agencies will be executed on a [GSA Form 1334](#), *Request for Transfer of Excess Real and Related Personal Property*.
- (5) Gifts of real property will comply with [DR 5200-003](#), *Gift Acceptance Policy*.
- (6) Land Leases
 - (a) USDA Mission Areas, agencies, and staff offices will not locate permanent structures on land it does not own, except as prescribed by law or if:
 - 1 The lease term is equal to or less than the estimated life of the structure or the need for the structure; and
 - 2 The lease includes the right to remove such structures within 90 calendar days after termination of the use or right to the land.
 - (b) Approval of the ASA is required when using [7 U.S.C. § 2250a](#), *Erection of buildings and other structures on non-Federal lands; duration of use of such lands; removal of structures after termination of use; availability of funds for expenses of acquiring long-term leases or other agreements*, authority to a locate permanent structure on land not owned by the Federal Government when the estimated market value of the land exceeds the Simplified Lease Acquisition Threshold, as defined by the [General Services Acquisition Manual \(GSAM\) 570.102](#), *Definitions*.
 - (c) Public Announcements. No public announcement will be made of proposed leases requiring approval of the ASA until such approval has been obtained.

c. Disposal

- (1) Each Mission Area, agency, and staff office will retain real property assets necessary to carry out the mission of USDA. Excess real property assets will be disposed.
- (2) The Mission Area, agency, or staff office that executes their authority to dispose of USDA real property assets is considered the Disposal Agency.
- (3) Screening
 - (a) The ARPD will submit a package to the Chief, PMD, at OPEM.RealProperty@usda.gov, for screening excess real property assets at the Departmental level to offer the asset to other USDA Mission Areas, agencies,

or staff offices. The following excess real property assets will be considered for Departmental screening:

- 1 Land regardless of its value;
- 2 Real property improvements valued \$50,000 and over; and
- 3 Real property improvements valued under \$50,000 if the ARPD decides to submit for screening. The decision is based on:
 - a The condition of the asset; and
 - b The likelihood that another USDA Mission Area, agency, or staff office might have a need for the asset.

- (b) PMD will screen this asset for 30 calendar days with other USDA Mission Areas, agencies, and staff offices to identify if another USDA Mission Area, agency, or staff office has a need for the asset. If no Mission Area, agency, or staff office expresses a need for the asset, then the screening notice will expire on a set date and the Mission Area, agency, or staff office can continue the disposal process.

(4) Homeless Assistance

- (a) Mission Areas, agencies, and staff offices will comply with Title V of the *McKinney-Vento Homeless Assistance Act*, [42 U.S.C § 11411](#), *Use of unutilized and underutilized public buildings and real property to assist the homeless*.
- (b) When reporting a suitable and available property for homeless assistance to the United States Department of Housing and Urban Development (HUD), Mission Areas, agencies, or staff offices will provide a copy of the report to OPEM.RealProperty@usda.gov, unless the asset has been reported to GSA for disposal. In that situation, GSA is responsible for reporting the property to HUD.

- (5) Mission Area, agency, and staff office heads are delegated authority to dispose of non-land real property assets valued under \$50,000 if USDA sustainability and environmental management policies are followed.

(6) Report of Excess (ROE)

- (a) After screening, the following real property assets will be reported to GSA for excess, unless the Mission Area, agency, or staff office has independent statutory authority to dispose:

- 1 Land regardless of its value; and
 - 2 Real property improvements valued \$50,000 and over.
 - (b) Mission Areas, agencies, and staff offices will submit ROE packages (including the Report Property Excess Forms listed on GSA's [Real Property Utilization and Disposal](#) website) to the Chief, PMD at OPEM.Real.Property@usda.gov.
 - (c) PMD will coordinate a review by the Environmental Management Division (EMD) and prepare the package for signature by the OPEM Director.
 - (d) Once OPEM approval is obtained, PMD will submit the ROE into GSA's ROE Portal.
- (7) Independent Disposal Authority Authorized by Legislation
- (a) Occasionally Congress will authorize a specific Mission Area, agency, or staff office the authority to dispose of specific real property assets.
 - (b) The Mission Areas, agencies, and staff offices will follow the policy and procedures outlined in the legislation.
 - (c) The Mission Area, agency, or staff office will provide a copy of the form [AD-112](#), *Report of Unserviceable, Lost, Stolen, Damaged, or Destroyed Property*, for all disposals to OPEM.
 - (d) Mission Areas, agencies, and staff offices must still comply with USDA sustainability and environmental management policy.
- (8) Reassignment of real property by USDA Mission Areas, agencies, and staff offices. Prior to actions from other sources, USDA Mission Areas, agencies, and staff offices will determine whether new requirements for property can be met by improved utilization of their existing property or reassignment of other Department property.
- (a) Land and buildings. OPEM will approve and reassign land and appurtenant structures and facilities between the Mission Areas, agencies, and staff offices of the Department. Reassignment may be made without exchange of funds, except that reimbursement may be required for book value of real property under custody of the Commodity Credit Corporation. Request and supporting justification for reassignment of such real property will be submitted through the head of the requesting Mission Area, agency, or staff office to the OPEM Director at OPEM.RealProperty@usda.gov.

- (b) Buildings and facilities without land. Buildings and other similar facilities or structures may be reassigned between Mission Areas, agencies, and staff offices without reimbursement, by agreement of the Mission Areas, agencies, or staff offices.
- (c) Permits. USDA Mission Area, agency, and staff office heads may issue a permit to another USDA Mission Area, agency, or staff office to allow the Mission Areas, agency, or staff office to use property that is not immediately needed by a Departmental Mission Area, agency, or staff office and not considered excess. Any operations and maintenance costs can be negotiated between the permitting Mission Area, agency, or staff office and the permittee. GSA alone can approve permitting other Government agencies outside the Department to use property that is not immediately needed by a Departmental Mission Area, agency, or staff office and not considered excess.

5. ROLES AND RESPONSIBILITIES

a. The ASA will:

- (1) Serve as USDA's SRPO;
- (2) Approve certain real property acquisition projects of improved land, buildings, or other structures which involve a total expenditure more than \$1,500,000;
- (3) Approve acquisition projects involving the alteration of a leased building or any part of a leased building which involve a total expenditure more than \$750,000;
- (4) Approve any action or public announcement of the design, alteration, or construction of a USDA-owned facility, as applicable; and
- (5) Approve the construction of permanent structures and the public announcement of such actions on leased land in certain situations as specified.

b. The Director, OPEM will:

- (1) Oversee the Department's real property program;
- (2) Approve alternate or supplemental EAMS other than the system designated for use by the Department;
- (3) Approve proposed acquisition projects for which the ASA must approve and coordinate the submission of these projects to the ASA for approval;
- (4) Coordinate the submission of any project for which Congressional approval is required, as specified;

- (5) Coordinate any prospectus level project with GSA;
 - (6) Approve any exception to the 100 percent reimbursement requirement on transfers;
 - (7) Approve of reassignment of real property land and buildings between USDA Mission Areas, agencies, and staff offices and approves ROEs submitted by OPEM to GSA;
 - (8) Approve of certain exchanges of real property for privately owned property; and
 - (9) Approve the transfer of USDA owned real property to other Federal agencies.
- c. The Chief, PMD, OPEM will:
- (1) Serve as the USDA RPD;
 - (2) Carry out wide-ranging real property asset and space management duties and responsibilities;
 - (3) Certify the Department's real property data annually and submit to FRPP-MS;
 - (4) Serve as the Designated Point of Contact for USDA's annual real property inventory;
 - (5) Screen USDA surplus real property to other USDA Mission Areas, agencies, and staff offices to see if a need elsewhere in the Department exists; and
 - (6) Review and approve any waivers of the policies outlined in this DR.
- d. Mission Area, Agency, and Staff Office Heads will:
- (1) Implement this policy and align their policies and procedures with this DR within 6 months of the publish date;
 - (2) Coordinate direct Federal development projects with state and local units of government as applicable;
 - (3) Perform actions required by the [*Stewart B. McKinney Homeless Assistance Act of 1987*](#); and
 - (4) Issue permits for use by another USDA Mission Area, agency, or staff office if the real property is not immediately needed and not considered excess.
- e. Mission Area, Agency, and Staff Office ARPDs will:

- (1) Coordinate with the Mission Area, agency, or staff office's CFO and BO to submit the Agency Capital Planning information to OPEM;
 - (2) Submit an annual certification to OPEM no later than September 30 that affirms the integrity of their Mission Area, agency, or staff office's reportable real property inventory data in the Department's EAMS for that fiscal year; and
 - (3) Submit a disposal package to the Chief, PMD, for screening certain excess real property assets at the Departmental level.
- f. LLAs will enter collocation agreement data in the EAMS for collocated office.
- g. The Director of the OO will maintain the data for certain real property assets within the NCR.

6. POLICY EXCEPTIONS

Unless specifically stated to submit exceptions elsewhere, requests for exceptions to any policy set forth in this DR will include supporting documentation and a justification stating why the policy cannot be met. Submit them to the Chief, PMD, OPEM, USDA, 1400 Independence Avenue SW, Washington DC 20250 or to OPEM.RealProperty@usda.gov.

7. INQUIRIES

Direct all inquiries about this DR to the Chief, PMD, OPEM, USDA, 1400 Independence Avenue SW, Washington DC 20250, or to OPEM.RealProperty@usda.gov.

-END-

APPENDIX A

ACRONYMS AND ABBREVIATIONS

AD	Agriculture Department (prefix for USDA Departmental form numbers)
ARPD	Agency Real Property Director
ASA	Assistant Secretary for Administration
BO	Budget Officer
CFR	Code of Federal Regulations
CFO	Chief Financial Officer
CP	Capital Plan
DHS	Department of Homeland Security
DOJ	Department of Justice
DD	Data Dictionary
DR	Departmental Regulation
EAMS	Enterprise Asset Management System
EMD	Environmental Management Division (OPEM component)
FMR	Federal Management Regulation
FRPC	Federal Real Property Council
FRPP	Federal Real Property Profile
FRPP-MS	Federal Real Property Profile – Management System
GSA	General Services Administration
GSAM	General Services Acquisition Manual
HUD	Housing and Urban Development
LLA	Lead Leasing Agency
NCR	National Capital Region
OA	Occupancy Agreement
OMB	Office of Management and Budget
OO	Office of Operations
OPEM	Office of Property and Environmental Management
PMD	Property Management Division (OPEM component)
ROE	Report of Excess
RPD	Real Property Director
SRPO	Senior Real Property Officer
U.S.C.	United States Code
USDA	United States Department of Agriculture

APPENDIX B

DEFINITIONS

Collocation. The process of housing of two or more USDA Mission Areas, agencies, or staff offices together in one complex. Collocated agencies can be housed contiguously or in several noncontiguous spaces throughout several buildings in one complex or campus.

Collocation Agreement. This is the agreement on how to share resources within an office with more than one USDA Mission Area, agency, or staff office present. It describes how many people are present and how the shared space is divided up and paid for.

Direct Federal Development. Direct Federal development projects include planning and construction of facilities and installations or other public works; the acquisition, use and disposal of real property; and granting of licenses and permits.

Disposal Agency. The Mission Area, agency, or staff office of the Department whose official executes their disposal authority to dispose of USDA real property assets.

Excess Real Property. Any real property under the control of the Department that is not required for its mission and the discharge of its responsibilities as determined by OPEM or Mission Area, agency, or staff office as applicable.

Fair Market Value. The price at which property would change hands between a willing buyer and a willing seller, neither being under any compulsion to buy or to sell and both having reasonable knowledge of relevant facts.

Prospectus. A request from the GSA Administrator to Congress for approval to appropriate funds to construct, alter, or acquire buildings, or to lease space or alter leased space, when the prospectus threshold is exceeded.

Prospectus Threshold. Annually adjusted limit to restrict appropriations on real property projects over a certain amount. Refer to GSA website, [Annual Prospectus Thresholds](#), for the current threshold.

Public Announcement. Any formal press release or notice to the general public.

Public Building. A building, whether for single or multitenant occupancy, and its grounds, approaches, and appurtenances, which is generally suitable for use as office or storage space or both by one or more Federal agencies and mixed-ownership Government corporations. For further clarification see [40 U.S.C. § 3301](#), *Definitions and nonapplication*.

Real Property. Real property is defined in [FMR 102-71.20](#) as:

- a. Any interest in land, together with the improvements, structures, and fixtures located thereon (including prefabricated movable structures, such as Butler-type storage warehouses and Quonset huts, and house trailers with or without undercarriages), and appurtenances thereto, under the control of any Federal agency, except:
 - (1) The public domain;
 - (2) Lands reserved or dedicated for national forest or national park purposes;
 - (3) Minerals in lands or portions of lands withdrawn or reserved from the public domain that the Secretary of the Interior determines are suitable for disposition under the public land mining and mineral leasing laws;
 - (4) Lands withdrawn or reserved from the public domain but not including lands or portions of lands so withdrawn or reserved that the Secretary of the Interior, with the concurrence of the Administrator of General Services, determines are not suitable for return to the public domain for disposition under the general public land laws because such lands are substantially changed in character by improvements or otherwise; and agency for disposition by severance and removal from the land.
- b. Improvements of any kind, structures, and fixtures under the control of any Federal agency when designated by such agency for disposition without the underlying land (including such as may be located on the public domain, on lands withdrawn or reserved from the public domain, on lands reserved or dedicated for national forest or national park purposes, or on lands that are not owned by the United States) excluding, however, prefabricated movable structures, such as Butler-type storage warehouses and Quonset huts, and house trailers (with or without undercarriages).
- c. Standing timber and embedded gravel, sand, or stone under the control of any Federal agency, whether designated by such agency for disposition with the land or by severance and removal from the land, excluding timber felled, and gravel, sand, or stone excavated by or for the Government prior to disposition.

Report of Excess. The official request from a Federal agency to GSA when the agency wants GSA to dispose of excess Federal real property utilizing GSA's disposal authority.

Subsurface Right. A landowner's right over minerals and other substances found below a property.

APPENDIX C

AUTHORITIES AND REFERENCES

[7 U.S.C. § 2250a](#), *Erection of buildings and other structures on non-Federal lands; duration of use of such lands; removal of structures after termination of use; availability of funds for expenses of acquiring long-term leases or other agreements*

[7 U.S.C. § 2268a](#), *Acquisition of land; options*

[40 U.S.C. § 3301](#), *Definitions and nonapplication*

[40 U.S.C. § 3307](#), *Congressional approval of proposed projects*

DOJ, Interagency Land Acquisition Conference, [Uniform Appraisal Standards for Federal Land Acquisitions](#), 2016

[Executive Order 13327](#), *Federal Real Property Asset Management*, February 4, 2004

GSA, [Annual Prospectus Thresholds](#) website

GSA, Federal Management Regulation, [41 Code of Federal Regulations \(CFR\) 102](#), Subchapter C, *Real Property*

GSA, FRPC, [FRPC Guidance Library](#) website

GSA, [Federal Real Property Profile Management System](#) website

GSA, [General Services Acquisition Manual \(GSAM\) 570.102](#), *Definitions*

GSA, [GSA Form 1334](#), *Request for Transfer of Excess Real and Related Personal Property*, June 1977

GSA, [Real Property Utilization and Disposal](#) website

McKinney-Vento Homeless Assistance Act, [42 U.S.C § 11411](#), *Use of unutilized and underutilized public buildings and real property to assist the homeless*

OMB, Memorandum [M-20-03](#), *Implementation of Agency-wide Real Property Capital Planning*, November 6, 2019

Stewart B. McKinney Homeless Assistance Act of 1987, [Public Law 100-77](#), July 22, 1987

USDA, [AD-107](#), *Report of Transfer or Other Disposition or Construction of Property*, November 1989

USDA, [AD-112](#), *Report of Unserviceable, Lost, Stolen, Damaged, or Destroyed Property*, March 1994

USDA, [Departmental Directives by Category](#) website

USDA, [DR 1058-001](#), *Sustainable Operations Council*, December 21, 2021

USDA, [DR 5200-003](#), *Gift Acceptance Policy*, January 4, 2018

USDA, [DR 5600-005](#), *Environmental Management*, February 28, 2022